

THE PUNJAB ARMS ORDINANCE 1965

(XX of 1965)

CONTENTS

CHAPTER I Preliminary

1. Short title, extent and commencement.
2. Exception.
3. Definitions.

CHAPTER II Sale and Repair

4. Unlicensed sale, repair, manufacturing of arms and ammunition and running of gun shooting club prohibited.

CHAPTER III Transport

5. Power to prohibit transport.
6. Power to establish searching posts.
7. Arrest of persons conveying arms, etc., under suspicious circumstances.

CHAPTER IV Going Armed and Possessing Arms, etc.

8. Prohibition of going armed without licence.
9. Unlicensed possession of arms, etc.
10. In certain cases arms to be deposited at police station or with licensed dealers.

CHAPTER V Licences

11. Power to make rules as to licences.
- 11A. Cognizance and trial of offences.
- 11B. Prohibition of keeping, carrying or displaying arms.
12. Cancellation and suspension of licences.

CHAPTER VI Penalties

- 13. Offences and penalties.
- 14. Certain breaches of sections 4, 5, 9 and 21.
- 14A. Cognizance and trial of offences.
- 15. Breach of licence.
- 16. Knowingly purchasing arms, etc., from unlicensed persons.
- 17. Penalty for breach of rules.
- 18. Penalty for failure to give information under section 23.
- 19. Penalty for refusing or neglecting to produce arms.
- 20. Power to confiscate.

CHAPTER VII Miscellaneous

- 21. Search and seizure by Magistrate.
- 22. Seizure and detention by Secretary.
- 23. Information to be given regarding offences.
- 24. Searches in the case of offences how conducted.
- 25. Operation of other laws not barred.
- 26. Power to take census of arms.
- 27. [Omitted].
- 28. Notice and limitation of proceedings.
- 29. [Omitted]

TEXT

**¹THE ²[³[PUNJAB]] ARMS ORDINANCE, 1965
(XX of 1965)**

[8 June 1965]

An
Ordinance

to consolidate and amend the law relating to the sale, transport, bearing or possession of arms, ammunition or military stores.

WHEREAS it is expedient to consolidate the law relating, to the sale, transport, bearing or possession of arms, ammunition or military stores, in the manner hereinafter appearing;

AND WHEREAS the Provincial Assembly of West Pakistan is not in session and the Governor of West Pakistan is satisfied that circumstances exist which render immediate legislation necessary;

NOW, THEREFORE, in exercise of the powers conferred on him by clause (1) of Article 79 of the Constitution, the Governor of West Pakistan is pleased to make and promulgate the following Ordinance:—

**CHAPTER I
Preliminary**

1. Short title, extent and commencement.— (1) This Ordinance may be called the ⁴[⁵[Punjab]] Arms Ordinance, 1965.

⁶[(2) It extends to whole of the Punjab.]

(3) It shall come into force at once.

⁷**[2. Exception.**— Nothing contained in this Ordinance shall apply to the sale, transport, bearing or possession of arms, ammunition or military stores by order of the Government or the Federal Government, or by public servant or a member of any of the non-regular force of the Government or the Federal Government, in the course of his duty as such public servant or member.]

¹This Ordinance was promulgated by the Governor of West Pakistan on June 8, 1965, published in the Gazette of West Pakistan (Extraordinary), dated July 10, 1965, pp. 3673-84 and approved by the Provincial Assembly of West Pakistan on July 10, 1965 under clause (3) of Article 79 of the Constitution of the Islamic Republic of Pakistan (1962).

²Substituted for the words "West Pakistan" by the West Pakistan Arms (Amendment) Act, 1974, (XXXVIII of 1974), published in the Gazette of Pakistan (Extraordinary), dated May 25, 1974, pp. 191-213, s. 2(a).

³Substituted for the word "Pakistan" by the Punjab Arms (Amendment) Act 2014, (XXVIII of 2014), published in the Punjab Gazette (Extraordinary), dated December 17, 2014, pp. 1895-1896, s. 2(a)

⁴Substituted for the words "West Pakistan" by the West Pakistan Arms (Amendment) Act, 1974, (XXXVIII of 1974), published in the Gazette of Pakistan (Extraordinary), dated May 25, 1974, pp. 191-213, s. 2(a).

⁵Substituted for the word "Pakistan" by the Punjab Arms (Amendment) Act 2014, (XXVIII of 2014), published in the Punjab Gazette (Extraordinary), dated December 17, 2014, pp. 1895-1896, s. 2(a).

⁶Substituted by the Act *ibid.*, s. 2(b).

⁷*Ibid.*, s. 3.

3. Definitions.— (1) In this Ordinance, unless the context otherwise requires, the following expressions shall have the meanings hereby respectively assigned to them, that is to say—

- (a) “ammunition” includes—
 - (i) ammunition of all types for light and heavy automatic weapons, revolvers, pistols, rifles, carbines, muskets and shotguns;
 - (ii) ammunition constructed and modified for firing projectiles or gas or smoke containers;
 - (iii) gun wads, gun flints, percussion-caps, fuses, friction tubes and detonators;
 - (iv) all types of grenades, bombs, rockets, mines and fuels for flame throwers;
 - (v) all types of explosives, fulminating material and propellants, including all articles specially designed for torpedo operation and depth charges;
 - (vi) all parts of ammunition,but does not include lead, sulphur or saltpeter;
- (b) “arms” includes—
 - (i) cannon;
 - (ii) firearms of all types, such as light and heavy automatic and semi-automatic weapons, rifles, carbines, muskets, shotguns (whether single or double barrelled), revolvers, pistols and appliances the object of which is the silencing of fire arms;
 - ¹[(iii) air pistols, bayonets, swords, sword-sticks, daggers, knives with blades of four inches or more (but not kitchen knives or knives used in good faith for the carrying on of a profession), and flick-knives irrespective of the size of the blade;]
 - (iv) knuckle-dusters, spears, spear-heads, bows and arrows and parts of arms;
- (c) “cannon” includes—
 - (i) all types of artillery, mortars, machine and sub-machine guns;
 - (ii) silencers for all machines and sub-machine guns;
 - (iii) anti-tank rifles and recoil-less guns or rifles and bazookas;
 - (iv) revolvers or pistols over 46 inches bore;
 - (v) nuclear weapons of all types;
 - (vi) projectors, guided missiles, and dischargers for grenades, rockets, bombs and gas or smoke containers;
 - (vii) flame throwers of all types;

¹Substituted by the West Pakistan Arms (Amendment) Ordinance, 1969 (XI of 1969), published in the Gazette of West Pakistan (Extraordinary), dated July 10, 1969, pp. 1109-1110, s. 2(a).

- (viii) all carriages, platforms and appliances for mounting or transporting cannon; and
- (ix) parts of cannon;

¹[(d) "Government" means Government of the Punjab;]

²[(da) "gun shooting club" means a specialized facility, comprising of ranges, designed specifically to practice target shooting of non-prohibited bore arms;

³[(dd) "flick-knife" means a knife which has a blade which opens automatically by hand pressure applied to a button, spring or other device in, or attached to, the handle of the knife, and includes any knife which has a blade which is released from the handle or sheath thereof by the force of gravity or by the application of centrifugal force and which, when released, is locked in place by means of a button, spring lever or other device;]

(e) "licence" means a licence granted under this Ordinance;

(f) "military stores" means any stores which the "[Federal Government] may, by notification in the official Gazette, declare to be military stores;

(g) "rules" means rules made under this Ordinance ⁵[; and]

⁶[(h) "Secretary" means the Secretary to the Government, Home Department.]

(2) ⁷[Secretary] may, by notification in the official Gazette, declare any article or substance not specified in clause (a) or clause (b) or clause (c) of subsection (1), to be, as the case may be, ammunition, arms or cannon for the purposes of this Ordinance, and on the publication of such notification, such article or substance shall be deemed to be specified in the said clause (a) or clause (b) or clause (c), as may be notified.

¹Substituted by the Punjab Arms (Amendment) Act 2014 (XXVIII of 2014), published in the Punjab Gazette (Extraordinary), dated December 17, 2014, pp. 1895-1896, s. 4, which had earlier been substituted by the West Pakistan Arms (Amendment) Act, 1974 (XXXVIII of 1974), published in the Gazette of Pakistan (Extraordinary), dated May 25, 1974, pp. 191-213, s. 3.

²Inserted by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated 30 May, 2025, pp. 4783-4787, s. 2(a)(i).

³Inserted by the West Pakistan Arms (Amendment) Ordinance, 1969 (XI of 1969), published in the Gazette of West Pakistan (Extraordinary), dated July 10, 1969, pp. 1109-1110, s. 2(b).

⁴Substituted for the words "Central Government" by the West Pakistan Arms (Amendment) Act, 1974 (XXXVIII of 1974), published in the Gazette of Pakistan (Extraordinary), dated May 25, 1974, pp. 191-213, s. 2(b).

⁵Substituted by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated 30 May, 2025, pp. 4783-4787, s. 2(a)(ii).

⁶Added by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated 30 May, 2025, pp. 4783-4787, s. 2(a)(iii).

⁷Substituted by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated 30 May, 2025, pp. 4783-4787, s. 2(b).

CHAPTER II

¹[Sale, Repair, Manufacturing and Running of Gun Shooting Club]

4. ²[Unlicensed sale, repair, manufacturing of arms and ammunition and running of gun shooting club prohibited].— (1) No person shall sell, or keep, offer or expose for sale, any arms, ammunition, or military stores, or undertake the repairs ³[and manufacturing of any arms, ammunition and running of gun shooting club] except under a licence and in the manner and to the extent permitted thereby.

(2) Nothing herein contained shall prevent any person from selling any arms or ammunition which he lawfully possesses for his own private use to any person who is not by any enactment for the time being in force prohibited from possessing the same; but every person so selling arms or ammunition to any person shall, without unnecessary delay, give to the ⁴[⁵[Deputy Commissioner]], or to the officer in charge of the nearest police-station, notice of the sale and of the purchaser's name and address.

CHAPTER III

Transport

5. Power to prohibit transport.— Government may, from time to time, by notification in the official Gazette, regulate or prohibit the transport of any description of arms, ammunition or military stores over the whole of the Province or any part thereof either altogether or except under a licence and to the extent and in the manner permitted by such licence.

Explanation.— Arms, ammunition or military stores transhipped at a port in the Province are transported within the meaning of this section.

6. Power to establish searching posts.— Government may, at any place along the boundary line ⁶[of the Province] and at such distance within such line as it deems expedient, or at any place in the Province that it may deem proper establish searching posts at which any person, vessel, vehicle or any other type of transport or any type of package or container in transit, may be stopped and searched for arms,

¹Substituted by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated 30 May, 2025, pp. 4783-4787, s. 3.

²Substituted by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated 30 May, 2025, pp. 4783-4787, s.4(a).

³Substituted by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated 30 May, 2025, pp. 4783-4787, s.4(b).

⁴Substituted for the words "Magistrate of the District" by the Arms Laws (Amendment) Ordinance, 2001 (LXVI of 2001), published in the Gazette of Pakistan (Extraordinary), dated December 3, 2001, pp. 1545-1546, s. 3 read with Schedule, Serial No. 2.

⁵Substituted for the words "District Coordination Officer" by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated 30 May, 2025, pp. 4783-4787, s.4(c).

⁶Substituted for the words "between the Province and an Acceding State" by the Punjab Arms (Amendment) Act 2014 (XXVIII of 2014), published in the Punjab Gazette (Extraordinary), dated December 17, 2014, pp. 1895-1896, s. 4.

ammunition and military stores by any officer empowered by Government in this behalf by name or in virtue of his office.

7. Arrest of persons conveying arms, etc., under suspicious circumstances.— (1) When any person is found carrying or conveying any arms, ammunition or military stores, whether covered by a licence or not, in such manner or under such circumstances as to afford just grounds of suspicion that the same are being carried or conveyed by him with intent to use them, or that the same may be used for any unlawful purpose, any person may without warrant apprehend him and take such arms, ammunition or military stores from him.

(2) Any person so apprehended, and any arms, ammunition or military stores so taken by a person not being a ¹[Deputy Commissioner] or a Police Officer, shall be delivered over as soon as possible to a Police Officer.

(3) All persons apprehended by, or delivered to, a Police Officer and all arms, ammunition and military stores seized by or delivered to any such officer under this section shall be taken without unnecessary delay before a Magistrate.

CHAPTER IV **Going Armed and Possessing Arms, etc.**

8. Prohibition of going armed without licence.— (1) No person shall go armed with any arms except under a licence and to the extent and in the manner permitted thereby.

(2) Any person so going armed without a licence or in contravention of its provisions may be disarmed by any ²[Deputy Commissioner], Police Officer or other person empowered by Government in this behalf by name or by virtue of his office.

(3) Nothing in sub-sections (1) and (2) shall apply to a person carrying arms under a written authority issued in accordance with the rules.

9. Unlicensed possession of arms, etc.— No person shall have in his possession or under his control any arms, or any ammunition or military stores, except under a licence and in the manner and to the extent permitted thereby.

10. In certain cases arms to be deposited at police station or with licensed dealers.— (1) Any person possessing arms, ammunition or military stores the possession whereof, has, in consequence of the cancellation or expiry of a licence or of an exemption or the death of the licensee or otherwise, become unlawful, shall without unnecessary delay deposit the same either with the officer incharge of the nearest police-station or, at his option and subject to such conditions as Government may by rule prescribe, with a licensed dealer:

¹Substituted for the word "Magistrate" by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated: 30 May 2025, pp. 4783-4787, s.5.

²Substituted for the word "Magistrate" by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated: 30 May 2025, pp. 4783-4787, s.6.

Provided that where, within one month of the expiry of a licence an application for its renewal has been made by registered post or by hand, the retention by the holder of such licence of the arms, ammunition or military stores covered by the licence shall be deemed to be lawful until such time as the licence has been renewed or its renewal refused.

(2) When arms, ammunition or military stores have been deposited under sub-section (1), the depositor, or in the case of his demise, his legal heirs, shall, at any time before the expiry of such period as Government may by rules prescribe, be entitled—

- (a) to receive back anything so deposited the possession of which by him or his legal heirs has become lawful; and
- (b) to dispose, or authorise the disposal, of anything so deposited by sale or otherwise to any person whose possession of the same would be lawful, and to receive the proceeds of any such sale:

Provided that nothing in this sub-section shall be deemed to authorise the return or disposal of anything the confiscation of which has been directed under section ¹[20].

(3) All things deposited under sub-section (1) and not returned or disposed of under sub-section (2) within the prescribed period therein referred to shall be forfeited to Government.

(4)(a) Government may make rules consistent with this Ordinance for carrying into effect the provisions of this section.

- (b) In particular and without prejudice to the generality of the foregoing provision Government may by rules prescribe—
 - (i) the conditions subject to which arms, ammunition or military stores may be deposited with a licensed dealer, and
 - (ii) the period after the expiry of which things deposited as aforesaid shall be forfeited under sub-section (3).

CHAPTER V Licences

11. Power to make rules as to licences.— Government may, from time to time, by notification in the official Gazette, make rules to determine the officers by whom, the form in which, and the terms and conditions on and subject to which any licence shall be granted, or renewed, and may by such rules among other matters—

- (a) fix the period for which such licences shall continue in force;
- (b) fix a fee payable by stamp or otherwise in respect of any such licence;

²[(c) * * * * *]

¹Substituted for the figure "19" by the West Pakistan Arms (Amendment) Ordinance, 1969 (XI of 1969), published in the Gazette of West Pakistan (Extraordinary), dated July 10, 1969, pp. 1109-1110, s. 3.

²Omitted by the West Pakistan Arms (Amendment) Act, 1974 (XXXVIII of 1974), published in the Gazette of Pakistan (Extraordinary), dated May 25, 1974, pp. 191-213, s. 4.

- (d) direct that the holder of any such licence shall keep a record or account, in such form as Government may prescribe, of anything done under such licence, and exhibit such record or account when called upon to do so by an officer of Government authorized in this behalf;
- (e) empower any officer of Government to enter and inspect any premises in which arms, ammunition or military stores are kept by any person holding a licence of the description referred to in section 4;
- (f) direct that any such person shall exhibit the entire stock of arms, ammunition and military stores in his possession or under his control to any officer of Government so empowered; and
- (g) require the person holding any licence or acting under any licence to produce the same and to produce or account for the arms, ammunition or military stores covered by the same when called upon to do so by an officer of Government so empowered.

¹**[11A. Power of the** ²**[Secretary].—** (1) The ⁴**[Secretary]** may, by notification in the official Gazette, specify the description, calibre or bore of arms and ammunition which are to be prohibited bores for the purpose of this Ordinance.

(2) No licence for the arms and ammunition notified under sub-section (1) shall be issued except by the ⁶**[Secretary]**.

(3) The ⁸**[Secretary]** shall have the power to issue licences for non-prohibited bore weapons valid for the whole or any part of Pakistan.

¹⁰**[(4) * * * * *]]**

¹¹**[11B. Prohibition of keeping, carrying or displaying arms.—** ¹**[(1) The** ²**[Secretary] may, by general or special order, prohibit the keeping, carrying or**

¹Inserted by the West Pakistan Arms (Amendment) Act, 1974 (XXXVIII of 1974), published in the Gazette of Pakistan (Extraordinary), dated May 25, 1974, pp. 191-213, s. 5.

²Substituted for the words "Federal Government" by the Punjab Arms (Amendment) Act 2014 (XXVIII of 2014), published in the Punjab Gazette (Extraordinary), dated December 17, 2014, pp. 1895-1896, s. 6.

³Substituted for the word "Government" by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated 30 May, 2025, pp. 4783-4787, s.7.

⁴Substituted for the words "Federal Government" by the Punjab Arms (Amendment) Act 2014 (XXVIII of 2014), published in the Punjab Gazette (Extraordinary), dated December 17, 2014, pp. 1895-1896, s. 6(a).

⁵Substituted for the word "Government" by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated: 30 May 2025, pp. 4783-4787, s.7.

⁶Substituted for the words "Federal Government" by the Punjab Arms (Amendment) Act 2014 (XXVIII of 2014), published in the Punjab Gazette (Extraordinary), dated December 17, 2014, pp. 1895-1896, s. 6.

⁷Substituted for the word "Government" by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated: 30 May 2025, pp. 4783-4787, s.7.

⁸Substituted for the words "Federal Government" by the Punjab Arms (Amendment) Act 2014 (XXVIII of 2014), published in the Punjab Gazette (Extraordinary), dated December 17, 2014, pp. 1895-1896, s. 6.

⁹Substituted for the word "Government" by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated: 30 May 2025, pp. 4783-4787, s.7.

¹⁰Omitted by the Punjab Arms (Amendment) Act 2014 (XXVIII of 2014), published in the Punjab Gazette (Extraordinary), dated December 17, 2014, pp. 1895-1896, s. 6(b).

¹¹Inserted by the Pakistan Arms (Second Amendment) Act, 1976 (LXXX of 1976), published in the Gazette of Pakistan (Extraordinary), dated December 30, 1976, pp. 635-636, s. 2.

display of arms at such places or times or on such occasions, as may be specified in the order.]

(2) In particular, and without prejudice to the generality of sub-section (1), an order issued thereunder may prohibit—

- (a) the keeping of arms within the premises of educational institutions and the premises of the hostels or boarding and lodging houses relating or affiliated thereto; and
- (b) the carrying or display of arms at fairs or in gatherings or processions of a political, religious, ceremonial or sectarian character or in the premises of courts of law or public offices.

(3) Any person keeping, carrying or displaying any arms in contravention of an order issued under sub-section (1) may be disarmed by any ³[Deputy Commissioner], Police Officer or other person empowered by Government in this behalf.]

12. Cancellation and suspension of licences.— (1) Any licence may be cancelled or suspended—

- (a) by the officer by whom the same was granted or by any authority to which he may be subordinate, or any ⁴[⁵[Deputy Commissioner]] within the local limits of whose jurisdiction the holder of such licence may be, when, for reasons to be recorded in writing, and after giving the holder of the licence an opportunity of showing cause against the proposed cancellation or suspension, such officer, ⁶[or authority] deems it necessary for the security of the public peace to cancel or suspend such licence; or
- (b) by any Judge or Magistrate before whom the holder of such licence is convicted of an offence against this Ordinance or against the rules and ⁷[Secretary] may, by a notification in the official Gazette, cancel or suspend all or any licences throughout the Province or any part thereof.

¹Substituted by the Punjab Arms (Amendment) Act 2014 (XXVIII of 2014), published in the Punjab Gazette (Extraordinary), dated December 17, 2014, pp. 1895-1896, s. 7.

²Substituted for the word "Government" by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated: 30 May 2025, pp. 4783-4787, s.8(a).

³Substituted for the word "Magistrate" by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated: 30 May 2025, pp. 4783-4787, s.8(b).

⁴Substituted for the words "District Magistrate" by the Punjab Arms (Amendment) Act 2014 (XXVIII of 2014), published in the Punjab Gazette (Extraordinary), dated December 17, 2014, pp. 1895-1896, s. 8, which had already been made by the Arms Laws (Amendment) Ordinance, 2001 (LXVI of 2001), published in the Gazette of Pakistan (Extraordinary), dated December 3, 2001, pp. 1543-1546, s. 2 read with Schedule, Serial No. 2.

⁵Substituted for the words "District Coordination Officer" by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated: 30 May 2025, pp. 4783-4787, s.9(a)(i).

⁶Substituted for the words "authority or Magistrate" by the Arms Laws (Amendment) Ordinance, 2001 (LXVI of 2001), published in the Gazette of Pakistan (Extraordinary), dated December 3, 2001, pp.1545-1546, s. 3 read with Schedule, Serial No. 2.

⁷Substituted for the word "Government" by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated: 30 May 2025, pp. 4783-4787, s.9(a)(ii).

(2) An appeal against an order of cancellation or suspension under clause (a) of sub-section (1) may be made by the person whose licence has been cancelled or suspended to the immediate official superior to the authority making the order, within sixty days of the receipt by him of a copy of the order where appeal lies to ¹[Chief Secretary], and where appeal lies to any other authority, within thirty days of the receipt by him of a copy of the order.

CHAPTER VI Penalties

²**13. Offences and penalties.**— (1) A person shall be liable to punishment under subsection (2) if he commits any of the following offences:

- (a) sells, or keeps, offers or exposes for sale, any arms, ammunition or military stores, or undertakes the repairs ³[and manufacturers any arms, ammunition and runs a gun shooting club] in contravention of section 4;
- (b) fails to give notice of the sale of arms and ammunition and of the purchaser's name and address as required by section 4;
- (c) transports any arms, ammunition or military stores in contravention of a regulation or prohibition issued under section 5;
- (d) goes armed in contravention of section 8;
- (e) has in his possession or under his control any arms, ammunition or military stores in contravention of section 9;
- (f) fails to deposit arms, ammunition or military stores as required under section 10;
- (g) intentionally makes any false entry in a record or account which by a rule made under clause (d) of section 11 he is required to keep;
- (h) intentionally fails to exhibit anything which by a rule made under clause (f) of section 11 he is required to exhibit; or
- (i) ⁴[*] carries or displays any arms in contravention of an order issued under section 11-B ⁵[; or]
- ⁶[(j) keeps any arms in contravention of an order issued under section 11A.]

¹Substituted for the word "Government" by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Gazette of Pakistan (Extraordinary), dated 30 May, 2025, pp. 4783-4787, s.9(b).

²Substituted by the Punjab Arms (Amendment) Ordinance 2015 (III of 2015), published in the Punjab Gazette (Extraordinary), dated January 9, 2015, pp. 2087-2089, s. 2.

³Substituted for the words "of any arms" by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Gazette of Pakistan (Extraordinary), dated 30 May, 2025, pp. 4783-4787, s.10(a)(i).

⁴Omitted the expression "Keeps," by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Gazette of Pakistan (Extraordinary), dated 30 May, 2025, pp. 4783-4787, s.10(a)(ii)(a).

⁵Substituted for the full stop "." by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Gazette of Pakistan (Extraordinary), dated 30 May, 2025, pp. 4783-4787, s.10(a)(ii)(b).

⁶Added by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Gazette of Pakistan (Extraordinary), dated 30 May, 2025, pp. 4783-4787, s.10(a)(iii).

¹[(2) The offences provided in sub-section (1) shall be non-bailable and for:

- (a) keeping or possessing of a non-prohibited bore weapon, ammunition of non-prohibited bore weapons or military stores, shall be punishable with imprisonment for a term which may extend to five years but shall not be less than three years and with fine not less than one million rupees, and in case of default of payment of fine, the offender shall undergo further imprisonment for six months; or
- (b) carrying or displaying of a non-prohibited bore weapon, ammunition of non-prohibited bore weapons or military stores, shall be punishable with imprisonment for a term which may extend to seven years but not less than three years and with fine not less than two million rupees, and in case of default of payment of fine, the offender shall undergo further imprisonment for six months; or
- (c) keeping or possessing of a prohibited bore weapon or ammunition of prohibited bore weapons, shall be punishable with imprisonment for a term which may extend to seven years but not less than four years and with fine not less than two million rupees, and in case of default of payment of fine, the offender shall undergo further imprisonment for one year; or
- (d) carrying or displaying of a prohibited bore weapon or ammunition of prohibited bore weapons, shall be punishable with imprisonment for a term which may extend to ten years but shall not less than seven years and with fine not less than two million rupees, and in case of default of payment of fine, the offender shall undergo further imprisonment for one year; or
- (e) carrying or possessing of two or more prohibited bore weapons or five or more non-prohibited bore weapons or one prohibited bore weapon and two non-prohibited bore weapons, shall be punishable with imprisonment for a term which may extend to fourteen years but not less than ten years and with fine which shall not be less than three million rupees, and in case of default of payment of fine, the offender shall undergo further imprisonment for two years; or
- (f) undertaking repairs or manufacturing any arms, ammunitions or running a gun shooting club, shall be punishable with imprisonment for a term which may extend to seven years but not less than five years and with fine which shall not be less than three million rupees and in case of default of payment of fine, the offender shall undergo further imprisonment of two years.]

14. Certain breaches of sections 4, 5, 9 and 21.– Whoever–

¹[(a) * * * * *]

¹Substituted by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated 30 May, 2025, pp. 4783-4787, s.10(b).

- (b) on any search being made under section 21, conceals or attempts to conceal any arms, ammunition or military stores,

shall be punished with imprisonment for a term which may extend to seven years ²[and with fine not less than one million rupees, and in case of default of payment of fine, the offender shall undergo further imprisonment for six months]:

³[Provided that the punishment for an offence committed in respect of any—

- (a) cannon, grenade, bomb or rocket; or
(b) light or heavy automatic weapon, rifle of .303 bore or over, musket of .410 bore or over or pistol or revolver of .441 bore or over, or ammunition which can be fired from such weapon, rifle, musket, pistol or revolver,

shall be imprisonment for a term ⁴[not less than three] years.]

⁵[**14A. Cognizance and trial of offences.**— All offences under this Ordinance shall be cognizable and shall be tried in accordance with the provisions of the Code of Criminal Procedure, 1898 (V of 1898).]

⁷[(2) * * * * *]]

15. Breach of licence.— Whoever, in violation of a condition subject to which a licence has been granted, does or omits to do any act shall, when the doing or omitting to do such act is not punishable under section 13 or section 14, be punished with fine which ⁸[shall not be less than one hundred thousand ⁹[**]] rupees.

16. Knowingly purchasing arms, etc., from unlicensed persons.— Whoever—

¹Omitted by the West Pakistan Arms (Amendment) Act, 1973 (LII of 1973), published in the Gazette of Pakistan (Extraordinary), dated July 5, 1973, pp. 543-544, s. 3.

²Substituted by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated: 30 May 2025, pp. 4783-4787, s.11(a).

³Substituted by the Pakistan Arms (Second Amendment) Act, 1976 (LXXX of 1976), published in the Gazette of Pakistan (Extraordinary), dated December 30, 1976, pp. 635-636, s. 4.

⁴Substituted by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated: 30 May 2025, pp. 4783-4787, s.11(b).

⁵Inserted by the Pakistan Arms (Amendment) Act, 1976 (L of 1976), published in the Gazette of Pakistan (Extraordinary), dated July 21, 1976, pp. 423-428, s. 2.

⁶Substituted by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated: 30 May 2025, pp. 4783-4787, s.12.

⁷Omitted by the Punjab Arms (Amendment) Act 2014 (XXVIII of 2014), published in the Punjab Gazette (Extraordinary), dated December 17, 2014, pp. 1895-1896, s. 9

⁸Substituted by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated 30 May, 2025, pp. 4783-4787, s.13.

⁹Substituted for the words "five hundred" by the Punjab Arms (Amendment) Act 2014 (XXVIII of 2014), published in the Punjab Gazette (Extraordinary), dated December 17, 2014, pp. 1895-1896, s. 10.

- (a) knowingly purchases any arms, ammunition or military stores from any person not licensed or authorised under sub-section (2) of section 4 to sell the same; or
- (b) delivers any arms, ammunition or military stores into the possession of any person without previously ascertaining that such person is legally authorised to possess the same,

shall be punished with imprisonment for a term which ¹[shall not be less than three years and with fine not less than five hundred thousand rupees, and in case of default of payment of fine, the offender shall undergo further imprisonment for six months]:

²[Provided that the punishment for an offence committed in respect of any—

- (a) cannon, grenade, bomb or rocket; or
- (b) light or heavy automatic weapon, rifle of .303 bore or over, musket of .410 bore or over or pistol or revolver of .441 bore or over, or ammunition which can be fired from such weapon, rifle, musket, pistol or revolver,

shall be imprisonment for a term ³[not less than five years, and with fine not less than five hundred thousand rupees, and in case of the default of payment of fine, the offender shall undergo further imprisonment for one year.]]

17. Penalty for breach of rules.— Any person violating any provision of any rule made under this Ordinance for the violation of which no penalty is provided by this Ordinance, shall be punished with fine which ⁴[shall not be less than one hundred thousand rupees, and in case of default of payment of fine, the offender shall undergo further imprisonment for three months].

18. Penalty for failure to give information under section 23.— Any person who in the absence of reasonable excuse, the burden of proving which shall lie upon such person, fails to give information to the nearest Police Officer or ⁵[Deputy Commissioner] in respect of any offence under sub-section (1) or sub-section (2) of section 23 of which he becomes aware or which he has reason to suspect, shall be punished with imprisonment for a term which may extend to six months, ⁶[and fine

¹Substituted by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated 30 May, 2025, pp. 4783-4787, s.14(a).

²Substituted by the Pakistan Arms (Second Amendment) Act, 1976 (LXXX of 1976), published in the Gazette of Pakistan (Extraordinary), dated December 30, 1976, pp. 635-636, s. 5.

³Substituted by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated 30 May, 2025, pp. 4783-4787, s.14(b).

⁴Substituted by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated 30 May, 2025, pp. 4783-4787, s.15.

⁵Substituted for the word "Magistrate" by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated: 30 May 2025, pp. 4783-4787, s.16(a).

⁶Substituted by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated: 30 May 2025, pp. 4783-4787, s.16(b).

not less than one hundred thousand rupees, and in case of default of payment of fine, the offender shall undergo further imprisonment for three months].

19. Penalty for refusing or neglecting to produce arms.— Any person refusing or neglecting to produce any arms when so required under section 26 shall be punished with imprisonment for a term which ¹[shall not be less than six months, and with fine not less than one hundred thousand rupees, and in case of default of payment of fine, the offender shall undergo further imprisonment for three months].

20. Power to confiscate.— When any person is convicted of any offence punishable under this Ordinance, committed by him in respect of any arms, ammunition or military stores, it shall be in the discretion of the committing Court or Magistrate further to direct that the whole or any portion of such arms, ammunition or military stores, and any vessel, vehicle or any other type of transport used to convey the same, and any type of package or container in which the same may have been concealed, together with the other contents of such package or container shall be confiscated:

Provided that where such conviction is in respect of an offence punishable under this Ordinance with imprisonment for not less than twelve months, the Court or the Magistrate convicting such person shall direct that the whole or any portion of such arms, ammunition or military stores shall be confiscated.

CHAPTER VII Miscellaneous

21. Search and seizure by Magistrate.— Whenever any Magistrate or an officer in charge of a police-station has reason to believe that any person residing within the local limits of his jurisdiction—

- (a) has in his possession any arms, ammunition or military stores for any unlawful purpose; or
- (b) that such person cannot be left in the possession of any such arms, ammunition or military stores without danger to the public peace;

such Magistrate or such Police Officer having first recorded the grounds of his belief, may cause a search to be made of the house or premises occupied by such person or in which such Magistrate or such Police Officer has reason to believe such arms, ammunition or military stores are or is to be found, and may seize and detain the same, although covered by licence or exemption, in safe custody for such time as he thinks necessary.

22. Seizure and detention by ²[Secretary].— ³[Secretary] may at any time order or cause to be seized any arms, ammunition or military stores in the possession of any person, notwithstanding that such person is lawfully entitled to possess the

¹Substituted by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated: 30 May 2025, pp. 4783-4787, s.17.

²Substituted for the word "Government" by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated: 30 May 2025, pp. 4783-4787, s.18.

³Substituted for the word "Government" by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated: 30 May 2025, pp. 4783-4787, s.18.

same, and may detain the same for such time as it thinks necessary for the public safety.

23. Information be given regarding offences.— (1) Every person aware of the commission of any offence punishable under this Ordinance shall, in the absence of reasonable excuse, the burden of proving which shall lie upon such person, give information of the same to the nearest Police Officer or ¹[Deputy Commissioner].

(2) Every person employed upon any Railway or by any public carrier shall, in the absence of reasonable excuse, the burden of proving which shall lie upon such person, give information to the nearest Police Officer or Magistrate regarding any package or container in transit which he may have reason to suspect contains arms, ammunition or military stores in respect of which an offence against this Ordinance has been or is being committed.

24. Searches in the case of offences how conducted.— When a search is to be made for any of the purposes of this Ordinance, such search shall be made under the provisions of the Code of Criminal Procedure, 1898 (V of 1898).

25. Operation of other laws not barred.— Nothing in this Ordinance shall be deemed to prevent any person from being prosecuted under any other law for any act or omission which constitutes an offence against this Ordinance or the rules or from being liable under such other law to any higher punishment or penalty than that provided by this Ordinance:

Provided that no person shall be punished twice for the same offence.

26. Power to take census of arms.— (1) Government may, from time to time, by notification in the official Gazette, direct a census to be taken of any arms in any area, and empower any person by name or in virtue of his office to take such census.

(2) On the issue of any such notification, all persons possessing any such arms in such area shall furnish to the person so empowered such information as he may require in reference thereto, and shall produce such arms to him if he so requires.

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28. Notice and limitation of proceedings.— No suit, prosecution or other proceeding shall lie against any person for anything which is in good faith done or intended to be done in pursuance of this Ordinance.

³[29. *Repeal.*— * * * * *

¹Substituted for the word "Magistrate" by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated: 30 May 2025, pp. 4783-4787, s.19.

²Omitted "Section 27" by the Punjab Arms (Amendment) Act 2025 (XLI of 2025), published in the Punjab Gazette (Extraordinary), dated: 30 May 2025, pp. 4783-4787, s.20.

³Omitted by the Punjab Arms (Amendment) Act 2014 (XXVIII of 2014), published in the Punjab Gazette (Extraordinary), dated: 17 December 2014, pp. 1895-1896, s. 15.